

Haridwar Yadav v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 20 January 2021 · Writ - C No. 15849 of 2020 · **Writ petition disposed of; liberty to move a representation before the Executive Engineer under Clause 7.10(iii); if filed, to be decided in accordance with law within one month after hearing**

HEADNOTE

Where a consumer seeks certiorari against a Format-1 letter and mandamus for connection, bill correction on meter reading, and compensation, and the licensee submits that a grievance as to disconnection or correction of the bill may be taken to the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005, the writ court will not decide the claim on merits. The petition is disposed of with liberty to move a representation before the Executive Engineer, Electricity Distribution Division, Block Second, Anand Nagar/Nautanwa, District Maharajganj, under Clause 7.10(iii); if so moved, it shall be considered and decided strictly in accordance with law within one month of filing, after hearing. The Court did not quash the letter, direct connection or bill correction, or award compensation.

FACTUAL SUMMARY

Haridwar Yadav filed Writ-C No. 15849 of 2020 against the State of Uttar Pradesh and three others, including the Executive Engineer, Electricity Distribution Division, Block Second, Anand Nagar/Nautanwa, District Maharajganj. He sought certiorari quashing letter no. 124 of Format-1 dated 10 September 2018 issued by that Executive Engineer; mandamus directing respondents 3 and 4 to give an electricity connection and correct the bill on the basis of meter reading, or to enquire into the matter; and compensation of Rs. 15 lakh. After several adjournments on the petitioner's request or illness slip, the Division Bench heard the petition on 20 January 2021. Counsel for the Power Corporation submitted that a grievance as to disconnection or correction of the electricity bill could be taken to the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iii)

disconnection and billing grievance — Clause 7.10(iii) representation to the Executive Engineer; writ not decided on merits

QUESTION

Where the consumer seeks quashing of a Format-1 letter and mandamus for connection, bill correction and compensation, and the licensee points to Clause 7.10(iii), will the writ court grant that relief on merits?

HOLDING

No. The writ is disposed of with liberty to the petitioner to move a representation raising his grievance before the Executive Engineer, Electricity Distribution Division, Block Second, Anand Nagar/Nautanwa, District Maharajganj, under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005. If such a representation is moved, respondent no. 3 shall consider and decide it strictly in accordance with law within one month of filing, after affording a hearing. The Court did not quash letter no. 124 of Format-1 dated 10.09.2018, did not direct connection or bill correction, and did not award the claimed compensation of Rs. 15 lakh. ¶ 3-4

QUALIFIER

Counsel for the Power Corporation invoked Clause 7.10(iii) as a Consumer Grievance Redressal Forum remedy; the operative direction is a representation to the Executive Engineer under the same clause.

FLAG Source PDF concatenates adjournments of 8.10.2020, 22.10.2020, 17.11.2020, 7.12.2020 and 11.1.2021 with this 20.1.2021 disposal. The 20.1.2021 order is unnumbered; paras 1-4 are sequential blocks from 'Heard learned counsel'. Clause 7.10(iii) is the CGRF complaint route; the Court applied it to a representation before the Executive Engineer. Not recast as Clause 6.5. Reliefs (iv) and (v) are blank in the extract.

alternate-remedy-clause-7.10

The writ seeking quashing of letter no. 124 of Format-1 dated 10.09.2018, connection, bill correction and compensation was disposed of with liberty to represent under Clause 7.10(iii) to the Executive Engineer; the claim was not decided on merits. ¶ 3-4

consider-grievance-in-accordance-with-law-no-merits

If the petitioner moves a Clause 7.10(iii) representation, respondent no. 3 is to consider and decide it strictly in accordance with law within one month after hearing; the Court did not grant or refuse the underlying relief. ¶ 4

apply-under-supply-code-consider-in-accordance-with-law

The consumer was left to a Supply Code representation under Clause 7.10(iii) rather than a writ determination of the Format-1 letter, connection, bill or compensation claim. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER LETTER NO. 124 OF FORMAT-1 DATED 10.09.2018 SHOULD BE QUASHED; WHETHER A CONNECTION SHOULD BE GIVEN AND THE BILL CORRECTED ON METER READING; AND WHETHER COMPENSATION OF RS. 15 LAKH IS PAYABLE

The live prayers. Left to a Clause 7.10(iii) representation before the Executive Engineer, if filed. ¶ 2, 4

NOT DECIDED — WHETHER CLAUSE 7.10(III) IS A CONSUMER GRIEVANCE REDRESSAL FORUM COMPLAINT OR A REPRESENTATION TO THE EXECUTIVE ENGINEER

Counsel invoked the CGRF; the operative direction is a representation to respondent no. 3 under the same clause. The Court did not resolve the mismatch. ¶ 3-4